

public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiffs seek \$300,000 in attorney’s fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) The court defers ruling on the attorney’s fees until the hearing on November 25, 2026.

The requested representative payment of \$20,000 (\$10,000 for each plaintiff) is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that she spent at least 20-25 hours of time on the case, and she accepted undefined “risk” by doing so. Considering all the factors, particularly the size of the settlement, the full requested payment is approved.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate. The motion is **granted**, except for attorney’s fees, which is scheduled for hearing on November 25, 2026 at 9:00 a.m.
2. Plaintiff’s Counsel is directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The proposed order shall attach a copy of this ruling.
3. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel is to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
4. No appearance is required at the June 17, 2026 hearing.

16. 9:00 AM CASE NUMBER: N25-2249
CASE NAME: LOS HERMANOS LOPEZ, LLC, VS. EUN EIM
*HEARING ON MOTION IN RE: ATTORNEY FEES

FILED BY: EIM, EUN A

TENTATIVE RULING:

Summary

Defendant Euna A. Eim ("Defendant") Motion for Attorney's Fees as prevailing party against Plaintiff Los Hermanos Lopez, LLC ("Plaintiff") is **continued**, *sua sponte*, to September 30, 2026 at 9:00 a.m, following the resolution of Plaintiff's Motion for Attorney's fees in Case No. N26-0261 to be heard in Dept. 10 on September 24, 2026. Counsel are ordered to meet and confer to resolve the issues underlying the competing motions for attorney's fees in two different cases. No appearance is required on June 17, 2026.

Background

Plaintiff filed an unlawful detainer action against Defendant Ms. Eim seeking to evict her from commercial premises located at 1450 Monument Boulevard in Concord, California. The action was based on non-payment of rent as alleged in a Three-Day Notice to Pay Rent dated October 17, 2025. After a trial on the merits, Judge Leonard Marquez entered judgment on behalf of Defendant. There, Judge Marquez found that Plaintiff was unable to establish an unlawful detainer claim for nonpayment. Plaintiff could not prove that Defendant was in possession without permission, is in default for unpaid rent, was properly served with a written three-day notice specifying the amount due and remains in default after the notice period expires.

The Court found the Three-Day Notice fatally defective for three reasons. First, the notice failed to frame the demand in the alternative as required by law. Instead of giving the tenant the option to "pay or quit," the notice simply stated "Quit and deliver up possession" without the requisite "or" preceding this language. On its face, this constituted an unqualified demand for surrender of the premises rather than a proper election of remedies.

Second, the notice failed to adequately identify the subject premises. The address was not recited in the notice, and the vague references to the business name and lease were insufficient. This deficiency was particularly problematic given trial testimony revealing a discrepancy between the actual portion of the shopping center occupied by the tenant and the unit identifier specified in the lease.

Third, the notice failed to properly specify the notice period. It did not state when it was served, nor did it contain sufficient information to permit an ordinary tenant to reasonably understand or calculate the deadline by which payment had to be made to avoid forfeiture of the leased premises.

Because the Three-Day Notice failed to comply with the strict statutory requirements, the court ruled that plaintiff failed to establish a cause of action for unlawful detainer by a preponderance of the evidence. The court entered judgment in favor of defendant Ms. Eim and against plaintiff Los Hermanos Lopez, LLC on January 9 and 12, 2026, awarding the defendant all relief requested and ordering that plaintiff take nothing by way of the complaint.

Analyses

Code of Civil Procedure section 1032, subdivision (a)(4) defines "prevailing party" as follows:

As used in this section, unless the context clearly requires otherwise: ... (4) Prevailing party" includes ... a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. When any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

Code of Civil Procedure section 1033.5, subdivision (a)(10) provides:

The following items are allowable as costs under Section 1032: ... (10) Attorney fees, when authorized by any of the following: (A) Contract.

The subject lease agreement', paragraph 31 contains an attorney fees clause, which provides:

If any Party or Broker brings an action or proceeding involving the Premises whether founded in tort, contract, or equity, or to declare rights hereunder, the Prevailing Party (as hereafter defined) in any such proceeding, action, or appeal thereon, shall be entitled to reasonable attorneys' fees. Such fees may be awarded in the same suit or recovered in a separate suit, whether or not such action or proceeding is pursued to decision or judgment.

The term, "Prevailing Party" shall include, without limitation, a Party or Broker who substantially obtains or defeats the relief sought, as the case may be, whether by compromise, settlement, judgment, or the abandonment by the other Party or Broker of its claim or defense. The attorneys' fee award shall not be computed either in accordance with any court fee schedule, but shall be such as to fully reimburse all attorneys' fees reasonably incurred.

Since Defendant prevailed in this proceeding against the Plaintiff, Defendant appears to meet the test of Code of Civil Procedure section 1033.5, subdivision (a)(10)(A) and the prevailing party definition under paragraph 31 of the subject lease agreement.

As set forth in the declaration of Counsel Shawn Kim, Defendant is seeking an award of attorney fees in the amount of \$11,256.37. This fee request is based on an hourly rate of \$395.00 and for 26.84 hours of time expended. An independent review by the Court finds that these fees are reasonable, given counsel's experience, the hourly rates for area and the time spent defending Defendant in this case.

Plaintiff's Opposition asserts that Defendant's fee request ignores the broader procedural reality that the Court ultimately found that Defendant's failure to meet their obligations under the lease warranted a judgment of possession in favor of Los Hermanos. The Motion seeks to recover attorneys' fees as though the dismissal arising from the First UD Action conclusively resolved the parties entire dispute. Plaintiff established that it is the prevailing party in a second unlawful

detainer action involving Defendant

Plaintiff claims that in the trial between the same parties for unlawful detainer matter in Case No. N26-0261 (the “Second UD Action”), the Court rejected Defendant’s reliance on allegations concerning utility payments and CAM charges. The Court entered judgment in favor of Los Hermanos. Even if the Court is not persuaded by the procedural history of this case, Plaintiff maintains that the fees are unreasonable and must be reduced due to the time spent on the utility-fraud issues.

The Court notes that Plaintiff recovered unpaid rent in the amount of \$67,854.00, interest, cost of suit and attorney’s fees in a judgment signed by Hon. Julia Campins after trial on April 23, 2026 the Second UD Action. Plaintiff, there, is the prevailing party in the unlawful detainer lawsuit. A hearing on attorney’s fees is scheduled for September 24, 2026 in that matter. Plaintiff seeks to recover attorney’s fees in the amount of \$20,222.50. The Court takes judicial notice of the Judgment filed in the Second UD Action, along with the minutes of the trial.

Since the Parties have competing and potentially offsetting attorney’s fees request, the Court orders both counsels to meet and confer to discuss a global resolution. In light of this, the Court finds good cause to make the following orders:

Ruling

1. Defendant’s Motion is continued, *sua sponte*, to September 30, 2026 at 9:00 a.m.
2. Counsel are ordered to meet and confer to resolve the issue of competing attorney’s fees motions in these two cases.
3. No appearance is required at the hearing on June 17, 2026.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C23-00009

CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DISCOVERY BY DEFENDANT SKINSPIRIT ESSENTIAL, LLC**

FILED BY: DALY, MICHELLE

TENTATIVE RULING:

Summary

Plaintiff Michelle Daly’s Motion to Compel Further Responses to Discovery by Defendant Skinspirit Essential LLC is **granted** as set forth herein.

Background

In this case, Plaintiff alleges medical malpractice against Defendant Michael Vistnes, M.D. and other Defendants arising out of facial laser treatment. Plaintiff alleges that Defendant Skinspirit Essential LLC (“Skinspirit” or “Defendant”) performed a cosmetic Intense Pulse Light (“IPL”) Laser procedure on her face which was not consented to. Skinspirit denied using the IPL on Plaintiff’s face. Plaintiff seeks discovery to obtain electronic information from the IPL device what was alleged used on the date of